

19STCV04540 19STCV04540

County: los-angeles

Division: Civil Law and Motion

Department: 517

Hearing date: 2026-07-30

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Case Number: 19STCV04540 Hearing Date: July 30, 2026 Dept: 517

The Court is denying the motion of judgment debtor Mark Buchheim for an order recalling, quashing, or limiting the Writ of Execution issued on June 24, 2026, and taxing or correcting the Memorandum of Costs After Judgment, Acknowledgment of Credit, and Declaration of Accrued Interest filed on or about June 18, 2026. (Motion, p. 2.)

Buchheim argues that the Judgment Creditors obtained the Writ of Execution while his motion for equitable offset in the amount of \$22,700 was pending before the Court. That fact does not support recalling, quashing or limiting the Writ of Execution as of the time that Buchheim sought that order, which was June 29, 2026. Indeed, a writ of execution cannot be quashed in its entirety even when a claimed offset against the judgment is valid. (*Turell v. Basic Investments, Inc.* (1974) 36 Cal.App.3d 618, 621.) On July 27, 2026, the Court granted Buchheim's motion for an equitable offset in the amount of \$22,700. At this point therefore, Code of Civil Procedure section 699.520, subdivision (f) requires that the Writ of Execution account for the partial offset. To that end, United Executive Home, the entity to which the Judgment Creditors assigned their rights under the judgment in June 2026, shall apply pursuant to section 699.510 for an amended Writ of Execution.

Buchheim also moved under section 685.070 to tax the accrued interest line of the memorandum of costs on form MC-012 that the Judgment Creditors filed by the amount by which the Judgment was offset. However, the MC-012 form claims no post-judgment costs; thus, there is nothing to tax under this section of the Code of Civil Procedure.